



INDIAN POLITY

PANCHAYATI RAJ EVOLUTION OF PRI SYSTEM

MODULE – 89



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EVOLUTION OF PANCHAYATI RAJ

Balwant Rai Mehta Committee

Ashok Mehta Committee

G V K Rao Committee

L M Singhvi Committee

Thungon Committee

Gadgil Committee

INTRODUCTION

- 1** The term Panchayati Raj in India signifies the system of rural local self-government.
- 2** It has been established in all the states of India by the Acts of the state legislatures to build democracy at the grass root level.
- 3** It is entrusted with rural development.
- 4** It was constitutionalized through the 73rd Constitutional Amendment Act of 1992.

BRIEF HISTORY OF PANCHAYATI RAJ INSTITUTIONS

- 1** Community Development Programme was launched in 1952.
- 2** The aim is bringing about overall development of rural areas through people's participation.
- 3** The programme was formulated to provide an alternative framework to reach the Tehsil-village level.
- 4** In 1957, Planning Commission appointed a Committee headed by Balwant Rai Mehta to study the **Community Development Programmes and National Extension Service Programme**.
- 5** This is to assess the extent of people's participation and recommend ways to ensure this.
- 6** It **recommended three-tier panchayati raj system** in the country. But, it has not recommended rigid framework for the same.



BRIEF HISTORY OF PANCHAYATI RAJ INSTITUTIONS

- 7** Ashok Mehta Committee in 1978, recommended **two-tier system** with Zilla Parishad at the district level and Mandal Panchayat as the base.



This is the only way democracy reaches the masses.

- 8** L. M. Singhvi Committee's recommendations that the **PRIs should be enshrined in the Constitution** and the Gram Sabha should be the base for decentralised democracy resulted in 73rd Constitutional Amendment Act, 1993.

- 9** Panchayati Raj started in India on the premise that at the local level, there should be some kind of democracy, which would involve people in the process of governance.

- 10** If the people are to be involved, they have to be given responsibilities in the functioning of the institutions.

EVOLUTION OF PANCHAYATI RAJ

BALWANT RAI MEHTA COMMITTEE



- 1** In January 1957, the Government of India appointed a committee to examine the working of the Community Development Programme (1952) and the National Extension Service (1953) and to suggest measures for their better working.
- 2** The chairman of this committee was Balwant Rai G Mehta.

EVOLUTION OF PANCHAYATI RAJ

RECOMMENDATIONS OF BALWANT RAI MEHTA COMMITTEE

8

A system should be evolved to effect further devolution of authority in future.

7

Adequate resources should be transferred to these bodies to enable them to discharge their functions and fulfil their responsibilities.

6

There should be a genuine transfer of power and responsibility to these democratic bodies.

5

The district collector should be the chairman of the zila parishad.

1

Establishment of a three-tier panchayati raj system

2

The village panchayat should be constituted with directly elected representatives, whereas the panchayat samiti and zila parishad should be constituted with indirectly elected members.

3

All planning and development activities should be entrusted to these bodies.

4

The panchayat samiti should be the executive body while the zila parishad should be the advisory, coordinating and supervisory body.

EVOLUTION OF PANCHAYATI RAJ

MORE ON BALWANT RAI MEHTA COMMITTEE RECOMMENDATIONS



- ◆ These recommendations of the committee were accepted by the **National Development Council** in January 1958.
- ◆ **Rajasthan** was the first state to establish Panchayati Raj. The scheme was inaugurated by the prime minister on **October 2, 1959, in Nagaur district**.
- ◆ Though most of the states created panchayati raj institutions by mid 1960s, there were differences from one state to another.

EVOLUTION OF PANCHAYATI RAJ

ASHOK MEHTA COMMITTEE

In December 1977, the Janata Government appointed a committee on panchayati raj institutions under the chairmanship of Ashok Mehta.



EVOLUTION OF PANCHAYATI RAJ



EVOLUTION OF PANCHAYATI RAJ

ASHOK MEHTA COMMITTEE



Due to the collapse of the Janata Government before the completion of its term, no action could be taken on the recommendations of the Ashok Mehta Committee at the central level. However, the three states of Karnataka, West Bengal and Andhra Pradesh took steps to revitalize the panchayati raj, keeping in view some of the recommendations of the Ashok Mehta Committee.

EVOLUTION OF PANCHAYATI RAJ

G. V. K. RAO COMMITTEE



- 1 The Committee to review the existing Administrative Arrangements for Rural Development and Poverty Alleviation Programmes under the chairmanship of G.V.K. Rao was appointed by the Planning Commission in 1985.

- 2 The Committee came to conclusion that the developmental process was **gradually bureaucratized** and divorced from the Panchayati Raj.

- 3 This phenomena of bureaucratization of development administration as against the democratization weakened the Panchayati Raj institutions resulting in what is aptly called as '**grass without roots**'.

EVOLUTION OF PANCHAYATI RAJ

RECOMMENDATIONS OF G. V. K. RAO COMMITTEE

5 Elections to the Panchayati Raj institutions should be held regularly.

4 A post of **District Development Commissioner** should be created. He should act as the **chief executive officer of the Zila Parishad**.



3 Some of the planning functions at the state level should be transferred to the district level planning units for effective decentralized district planning

1 The district level body, that is, the **Zila Parishad** should be of **pivotal importance** in the scheme of democratic decentralisation.

2 The Panchayati Raj institutions at the district and lower levels should be assigned an important role with respect to planning, implementation and monitoring of rural development programmes.



EVOLUTION OF PANCHAYATI RAJ

L M SINGHVI COMMITTEE

In 1986, Rajiv Gandhi government appointed a committee to prepare a concept paper on 'Revitalisation of Panchayati Raj Institutions for Democracy and Development' under the chairmanship of L M Singhvi.

- 1** The PRIs should be constitutionally recognised, protected and preserved. For this purpose, a new chapter should be added in the Constitution of India.
- 2** Nyaya Panchayats should be established for a cluster of villages.
- 3** It emphasised the importance of the Gram Sabha and called it as the embodiment of direct democracy.
- 4** The Village Panchayats should have more financial resources.
- 5** The judicial tribunals should be established in each state to adjudicate controversies about election to the PRIs their dissolution and other matters related to their functioning.

EVOLUTION OF PANCHAYATI RAJ

RECOMMENDATIONS OF THUNGO COMMITTEE



9 The **district collector** should be the chief executive officer of the Zilla Parishad

8 A **state finance commission** must lay down the criteria and guidelines for the devolution of finances to the PRIs

7 **Reservation of seats** in all the three-tiers should be on the basis of population.

6 A State-level Planning and Coordination Committee under Minister of Planning.

1 The Panchayati Raj bodies should be **constitutionally recognized**.

2 **Three-tier system** of Panchayati Raj

3 **Zilla Parishad** should be the pivot of the Panchayati Raj system.

4 Fixed tenure of **five years** for PRIs.

5 Maximum period of **super session** of a body should be **six months**.

EVOLUTION OF PANCHAYATI RAJ

Gadgil Committee was asked to consider the question of "how best Panchayati Raj institutions could be made effective".



CONSTITUTIONALISATION OF PRIs

Rajiv Gandhi Government:

- The Rajiv Gandhi Government introduced the 64th Constitutional Amendment Bill in the Lok Sabha in July 1989 to constitutionalise panchayati raj institutions and make them more powerful and broad based.
- Although, the Lok Sabha passed the bill in August 1989, it was not approved by the Rajya Sabha.

V P Singh Government:

- The National Front Government, soon after assuming office in November 1989 under the Prime Ministership of V P Singh, announced that it would take steps to strengthen the PRIs.
- Consequently, a constitutional amendment bill was introduced in the Lok Sabha in September 1990. However, the fall of the government resulted in the lapse of the bill.

Narasimha Rao Government:

- The Congress Government under P. V. Narasimha Rao once again considered the matter of the constitutionalisation of PRIs.
- It drastically modified the proposals in this regard to delete the controversial aspects and introduced a constitutional amendment bill in the Lok Sabha.
- This bill finally emerged as the 73rd Constitutional Amendment Act, 1992 and came into force on 24 April, 1993.

73RD AMENDMENT ACT OF 1992

SIGNIFICANCE OF THE ACT

- 1 It added a new **Part-IX** to the Constitution of India.
- 2 This part is entitled as '**The Panchayats**' and consists of provisions from Articles 243 to 243 O.
- 3 It has also added a **new Eleventh Schedule** to the Constitution.
- 4 The act has given a practical shape to **Article 40** of the Constitution.
- 5 The act gives a constitutional status to the Panchayati Raj Institutions.
- 6 It has brought them under the purview of the justiciable part of the Constitution.

In other words, the state governments are under constitutional obligation to adopt the new panchayati raj system in accordance with the provisions of the act.

73RD AMENDMENT ACT OF 1992

The provisions of the act can be grouped into two categories—compulsory and voluntary.

COMPULSORY PROVISIONS

The compulsory (mandatory or obligatory) provisions of the act have to be included in the state laws creating the new panchayati raj system

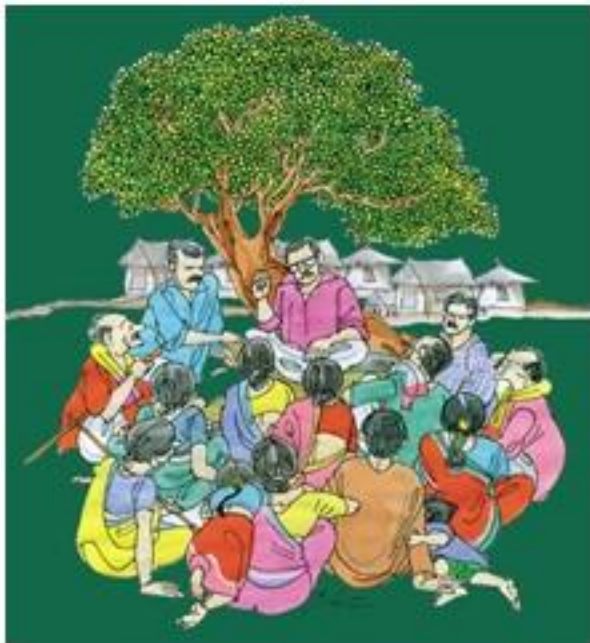
VOLUNTARY PROVISIONS

The voluntary provisions, on the other hand, may be included at the discretion of the states.

Thus the voluntary provisions of the act ensures the right of the states to take local factors like geographical, politico-administrative and others, into consideration while adopting the new panchayati raj system.

SALIENT FEATURES OF 73RD AMENDMENT ACT

1. GRAM SABHA



- 1 The act provides for a Gram Sabha as the foundation of the panchayati raj system.

- 2 It is a body consisting of persons registered in the electoral rolls of a village comprised within the area of Panchayat at the village level.

- 3 Thus, it is a village assembly consisting of all the registered voters in the area of a panchayat.

- 4 It may exercise such powers and perform such functions at the village level as the legislature of a state determines.

SALIENT FEATURES OF 73RD AMENDMENT ACT

1. GRAM SABHA



- 5 Gram Sabha is a constitutional body.

- 6 According to Article 243A of the Constitution, **Gram Sabha** may exercise such powers and perform such functions at the village level as the **Legislature of the State** may by-law provide.

- 7 Its functions and powers should be determined by the State Acts, but Gram Sabha is the most marginalised institution of local Govts.

Gram Sabha can become the best social audit unit in our new democratic institutions. 

1. GRAM SABHA

WHAT ARE VARIOUS ASPECTS REQUIRED TO MAKE THEM FUNCTIONAL?



Functions to be clearly delineated

Finances

Functionaries

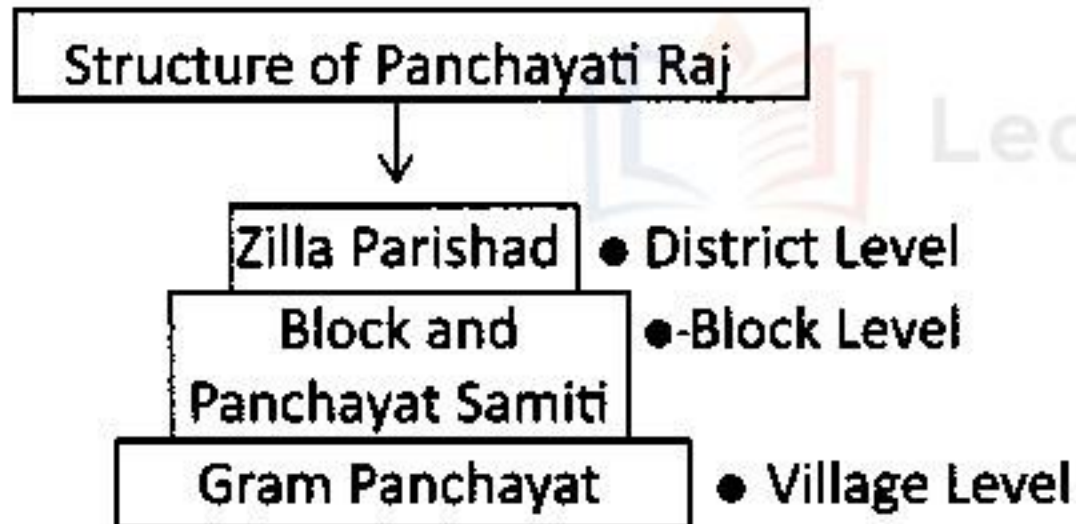
Capacity building

Accountability

Framework

SALIENT FEATURES OF 73RD AMENDMENT ACT

2. THREE-TIER SYSTEM



- 1 The act provides for a three-tier system of panchayati raj in every state, that is, panchayats at the village, intermediate, and district levels.
- 2 Thus, the act brings about uniformity in the structure of panchayati raj throughout the country.
- 3 However, a state having a population not exceeding 20 lakh may not constitute panchayats at the intermediate level.

SALIENT FEATURES OF 73RD AMENDMENT ACT

3. ELECTION OF MEMBERS AND CHAIRPERSONS



- 1** All the members of panchayats at the village, intermediate and district levels shall be elected directly by the people.
- 2** Further, the chairperson of panchayats at the intermediate and district levels shall be elected indirectly—by and from amongst the elected members thereof.

SALIENT FEATURES OF 73RD AMENDMENT ACT

4. RESERVATION OF SEATS

- 1 The act provides for the reservation of seats for scheduled castes and scheduled tribes in every panchayat in **proportion of their population** to the total population in the panchayat area.
- 2 Further, the state legislature shall provide for the **reservation of offices of chairperson** in the panchayat at the village or any other level for the SCs and STs.
- 3 The act provides for the reservation of **not less than one-third of the total number of seats for women**.
- 4 Further, **not less than one-third of the total number of offices of chairpersons** in the panchayats at each level shall be reserved for women.
- 5 The act also authorises the legislature of a state to make any provision for reservation of seats in any panchayat or offices of chairperson in the panchayat at any level **in favour of backward classes**.

SALIENT FEATURES OF 73RD AMENDMENT ACT

5. DURATION OF PANCHAYATS

- 1 The act provides for a **five-year term** of office to the panchayat at every level.
- 2 However, it can be dissolved before the completion of its term.
- 3 Further, **fresh elections** to constitute a panchayat shall be completed
 - a) Before the expiry of its duration of five years; or
 - b) In case of dissolution, before the expiry of a period of six months from the date of its dissolution.
- 4 But, where the remainder of the period is less than six months, it shall not be necessary to hold any election for constituting the new panchayat for such period.
- 5 Moreover, a panchayat constituted upon the dissolution of a panchayat before the expiration of its duration **shall continue only for the remainder of the period** for which the dissolved panchayat would have continued had it not been so dissolved.

SALIENT FEATURES OF 73RD AMENDMENT ACT

6. DISQUALIFICATIONS



- 1 A person shall be disqualified for being chosen as or for being a member of panchayat if he is so disqualified
 - a) Under any law for the time being in force for the purpose of elections to the legislature of the state concerned, or
 - b) Under any law made by the state legislature.
- 2 All questions of disqualifications shall be referred to such authority as the state legislature determines.

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